

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

JENNIFER BURRELL

Plaintiff,

Summons
Index No:

-against-

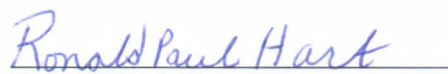
**THE CITY OF NEW YORK,
AND POLICE OFFICERS
JOSEPH BERMUDEZ,
JOSEPH PAPASIDERO
CHRISTOPHER CESARZ
POLICE OFFICERS JOHN AND/OR
JANE DOE NUMBERS 1-10 of the 48th
PRECINCT**

Defendants
_____X

YOU ARE HEREBY SUMMONED, to answer the Complaint in this action and to serve the Plaintiff a copy of your answer, or if the Complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within twenty (20) days after service, exclusive of this date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer the Plaintiff's Complaint, judgment will be taken against you by default for the relief demanded therein.

Plaintiff designates Bronx County as the place of venue based on the place of occurrence.

Dated: New York, NY 10007
May 7th 2015



Ronald Paul Hart, Esq.
Attorney for the Plaintiff
225 Broadway, Suite 2815
New York, NY 10007
Tel: (212) 766-1443

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

JENNIFER BURRELL

Plaintiff,

-against-

**THE CITY OF NEW YORK,
AND POLICE OFFICERS
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Defendants.

X

Index No:
**VERIFIED
COMPLAINT**

X

NOW COMES the Plaintiff, **JENNIFER BURELL**, by and through her attorney, **RONALD PAUL HART, P.C.**, as and for her Complaint against the Defendants, and respectfully shows to this Court and allege as follows:

PARTIES:

1. That the Plaintiff, **JENNIFER BURRELL** (Hereinafter "Plaintiff"), is presently a resident of the City and State of New York, residing in Bronx County.
2. Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State and City of New York.
3. Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, its agents, servants and employees

operated, maintained and controlled the Police Department of The City of New York, and all the police officers thereof, including defendants Police officers

JOHN AND/OR JANE DOES 1-10.

4. Upon information and belief, at all times hereinafter mentioned, and on or prior to October 9th, 2013, Defendant, Police Officers John and Jane DOES 1-10 were employed by the City of New York.
5. Upon information and belief, Police Officer **CHRISTOPHER CESARZ** was a supervising Police Officer employed by the City of New York.
6. Upon information and belief, Police Officer **JOSEPH BERMUDEZ** was the arresting officer of the Plaintiff employed by the City of New York.
7. Upon information and Police Officer, **JOSEPH PAPASIDERO** was also one of the arresting police officers or officers present at the time of plaintiff's arrest or subsequently thereafter.
8. This action arises both under the United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States, and under federal law, particularly the Civil rights Acts, Title 42 of the United Code, Section 1981, 1983, 1988, 1985(3) et seq., and state law for civil rights violations, false arrest, false imprisonment, malicious prosecution, abuse of process, negligent infliction of emotional distress, negligent hiring, training, and supervision of police officers, permitting unlawful police practices, and racial discrimination, to name a few of the causes of action.
9. This action also arises under the rights under the Constitution and laws of the State of New York.

10. Each and all of the acts of the Defendants alleged herein were done by the defendants, their agents, servants and employees, and each of them, as individuals and in their official capacities as police officers under the color and pretense State law, the statutes, ordinances, regulations, customs and usages of the State of New York, the **CITY OF NEW YORK** and the County of Kings, and under the authority of their office as police officers of said State, City and County.
11. The amount in controversy is \$75,000.00 exclusive interest.

PENDANT STATE CLAIMS:

12. The notice of Plaintiff's claim for damages for false arrest, violation of Civil rights, negligence in hiring and retaining, negligence in performance and negligence in training and supervising, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller Defendant **THE CITY OF NEW YORK** on the 30th day of October 2014.
13. That more than 30 days have elapsed since the Notice of Claim has been served upon Defendants **CITY OF NEW YORK** and other defendants and said defendants have neglected to or refused to make any adjustments or payment thereof; hence, this action is commenced within one year and 90 days after the cause of action arose.

AS AND FOR A
FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JENNIFER BURRELL
FOR MALICIOUS PROSECUTION

14. The Plaintiff, **JENNIFER BURRELL**, hereby incorporates by reference each and every preceding paragraph 1-13 of this Complaint as though fully plead and re-alleged in their entirety below.
15. That on or about October 9th, 2013, Plaintiff, **JENNIFER BURRELL**, (Hereinafter “Plaintiff”), went to the 48th Precinct located at 450 Cross Bronx Expy, Bronx, NY 10457 after her daughter informed her that the police needed to speak with her.
16. Ms. Burrell called the detectives that same day and introduced herself to the detective over the phone.
17. On Wednesday morning, the police came to Plaintiff’s residence and inquired if she was in fact Ms. Burrell by showing her a picture of herself.
18. Plaintiff responded by telling them that she was the person in the photographs. The Defendant police officers Bermudez, Papasidero, and other John and/or Jane Does then placed Plaintiff under arrest.
19. Upon information and belief, the supervising officer in charge of Plaintiff’s arrest was Christopher Caserz.
20. Defendant police officers also told Plaintiff that they has a warrant for her arrest.
21. However, during Plaintiff’s arrest, the police never informed her of the charges that were alleged filed against her nor showed her the warrant.
22. Plaintiff was then brought into the Detectives room where she spoke with the detectives.
23. Plaintiff asked the Detectives what was the reason for her arrest.

24. The Detectives responded by telling Plaintiff that someone identified her as being involved in a robbery the night of October 5th, 2013.
25. The detectives then questioned Plaintiff as to where she was between Friday nights at 2:30 am.
26. Plaintiff told the Detectives she was at the Q Lounge located on Gun Hill Road in Bronx County until its closing.
27. The Detectives then told Plaintiff that one LaShawn Lambert selected her photograph out of a photo mug shot and claimed that Plaintiff robbed Ms. Lambert of her I-phone.
28. Plaintiff told the detectives she never robbed anyone and proof of same was confirmed by a video which video evidence was also her alibi.
29. The Detectives asked her what might Ms. Lambert select he photo out of a photo array/mug shot etc.
30. Plaintiff told the detectives she doesn't know Ms. Lambert at all and they were mistaken about arresting her as the video evidence proved her innocence.
31. The Defendants Bermudez, and/or aided by Defendant Papisidero fingerprinted and photographed Plaintiff and placed her in Central Booking.
32. Plaintiff spoke with her attorney, Michael Hastiel, who at her arraignment told her that Ms. Lambert claims Ms. Burrell came at her with a razor and threatened to cut her face and robbed her I-phone.
33. Plaintiff told her attorney there is no way that she could have robbed Ms. Lambert because at the time of the alleged robbery, she was at the Q Lounge between 4:00 am to 4:30 am and there was video footage to prove it.
34. Plaintiff's bail was set at \$1,500.00.

35. Each time the case was on the calendar, the DA's office was not ready for trial. Plaintiff attorney advised her to go to Grand Jury.
36. At the time of the Grand Jury presentment, a video surveillance, time stamped at 3:58 am, was made available.
37. The video confirmed the Plaintiff's alibi and proved that Plaintiff did not rob Ms. Lambert.
38. After the Grand Jury Presentment, Ms. Lambert again changed the time and location where she was allegedly robbed from 2:30am to 4:30am and the location from 410 Tremont Avenue, Bronx, New York was later changed to a McDonalds located on Webster Avenue in Bronx, New York.
39. Plaintiff was needlessly maliciously prosecuted for one year until her case was dismissed in October 2014 after being arrested in October of 2013.
40. In addition to Plaintiff's case going on for one year, she also spent nine (9) days in jail at Riker's Island and was only released upon the Grand Jury's dismissal of the criminal charges and felony complaint lodged against her.
41. Plaintiff appeared at court on October 8th, 2014.
42. On this date, the Plaintiff and her attorney were waiting for trial when they appeared in front of the judge.
43. The A.D.A. told the Court they were dismissing all charges filed against Plaintiff.
44. Before the People dismissed the case, the A.D.A. said Ms. Lambert changed her story for the third time and the State was not able to prove the case by beyond a reasonable doubt.
45. It was readily apparent from the out that the police did not have probable cause to arrest Plaintiff.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JENNIFER BURRELL
FOR CIVIL RIGHT ACTION 42 USC §1983

46. The Plaintiff, **JENNIFER BURRELL**, hereby incorporates by reference each and every preceding paragraph 1-45 of this Complaint as though fully plead and re-alleged in their entirety below.

Venue and Jurisdiction

47. The jurisdiction is founded upon the existence of a Federal Question.
48. That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States 42 U.S.C. § 1983, 1981, 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.
49. That Jurisdiction is founded upon U.S.C § 1331 and § 1343 (3) and (4), this being an action authorized by law to redress the deprivation under the color of statute, ordinance, regulation, custom or usage of a right, privilege, and immunity secured to the Plaintiff by the First, Fourth, and Fourteenth amendments to the Constitution of the United State 42 U.S.C. § 1983, 1981, 1985 (3), 1988 and arising under the federal constitutional laws and statutes as well as the laws, statutes, and constitution of the State of New York.

50. The amount in controversy exceeds, exclusive of interest and costs are \$75,000, the jurisdictional limits of this and any other court having jurisdiction.
51. The Plaintiff did not commit any illegal act, either before or at the time She was falsely arrested and imprisoned and deprived of her constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § 1981, 1983, 1985 (3), and 1988 and the Constitution of the State of New York.
52. That on or about October 5th, 2013, at the time of the occurrence of the offenses charged, the City of New York had a custom, policy, usage, and practice of allowing people of color to be arrested on bogus charges when the evidence in this case, a video surveillance, eye-witnesses etc., established that Plaintiff could not have committed the crimes in question because she was not at or near the scene of the crime at the times charged in the Felony Complaint.
53. That the City's conduct was particularly egregious herein, because Defendant supervising police Officers such as Defendant Papasidero completely neglected their duties causing Plaintiff to suffer the irreparable harm of an unjustified arrest.
54. That the City of New York has a long history of turning a blind eye to this type of police misconduct because it allows residents of the City to feel that the police are fighting crime when the police are cooking crime statistics while arresting innocent persons.
55. The City's history of harassing and arresting minority citizens while not harassing its majority or white citizens violated Plaintiff's civil rights herein.
56. Thus, in this context, it is understood that **JENNIFER BURRELL** (Hereinafter "Plaintiff"), was arrested simply because she was poor minority person of color

whom the City believed would not defend herself, tiring from prosecution would plead guilty to crimes she did not commit.

57. Such deprivation were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U. S.C.A § 1983 and the laws, ordinances and statues of the State of New York to wit:

- a. The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.
- b. Defendant acted pursuant to an official policy even though unwritten that they understood authorized them to pursue to conduct warrantless searches of premises without a warrant, without probable cause, and without justification because such conduct was condoned by the NYPD.
- c. The arrest and imprisonment was not justified by probable cause or other legal privilege; Defendants, their agents, servants and employees, acting under the color of law and under authority of their Office as Police Officers for the city falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.
- d. That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees

- e. That Defendants, their agents, servants and employees is in their failure to enforce the laws of the state of New York did act with reckless disregard to Plaintiff's rights in that they did not exercise that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants.
 - f. That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in the exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the state of New York including Plaintiff.
 - g. That the acts of the Defendants, their agents, servants and employees relative in failing to properly discipline, hire and train their employees, agents and servants is a presents a clear and present danger to the citizens of the City and State of New York.
58. As a result of the aforesaid defendants' deprivation of Plaintiff's civil rights, Plaintiff has been damaged in the sum exceeds the Jurisdictional limits of all lower courts.
59. The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.

60. Probable cause or other legal privilege or grounds existed to justify the arrest and imprisonment. Defendants their agents, servants and employees, acting under the color of law and under authority of their office as Police Officers for the city falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.
61. That by their wanton conduct, Defendants showed a blatant disregard for Plaintiff's Constitutional rights.
62. That the Plaintiff demands attorney fees should prevail in his 42 USC Section 1983 claims against the individually named police officers and **CITY OF NEW YORK**.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JENNIFER BURRELL
CIVIL RIGHTACTIONS 42 USC § 1985 (3):

63. The Plaintiff, **JENNIFER BURRELL**, hereby incorporates by reference each and every preceding paragraph 1-62 of this Complaint as though fully plead and re-alleged in their entirety below.
64. That Plaintiff's arrest was premised upon a conspiracy of white police officers acting in concert, to wit: Defendants Joseph Bermudez, Joseph Papasidero, and Christopher Cesarz or about October 5th, 2013, who deprived Plaintiff, **JENNIFER BURRELL** (Hereinafter "Plaintiff"), of her civil rights by arresting her for a crime they knew she did not commit based upon readily obtainable/retrievable video evidence she told them existed and disproved that she was not at or near the crime scene on the day in question.

65. Plaintiff statement to the police negated any arguable probable cause claimed by the Defendant police officers to arrest.
66. Plaintiff evidence was clear and unmistakable: that during the time, place and location of the occurrence she was somewhere else and video evidence readily confirmed same.
67. Indeed, when the video evidence was presented to the Grand Jury, the Grand Jury refused to indict Plaintiff.
68. That by reason of the aforesaid violations, including but not limited to malicious prosecution false arrest, and false imprisonment, and battery and otherwise discriminatory treatment in violation of both the United States and New York State Constitutions, the Defendants conspired together to enter into a nefarious scheme to wrongfully deprive the Plaintiff and compelled her to abandon her rights and privileges as provided to her in the Constitutional rights as set forth in the Constitution of the State of New York, and laws thereto, the Defendants, violated 42 U.S.C. §§ 1981, 1983, 1985 (3) in that the Defendants acted as persons who under color of any statute, ordinance, regulation, custom or usage of the **CITY OF NEW YORK**, subjected or caused to be subjected, a citizen of the United States or other person within the jurisdiction.
69. Particularly Defendant sought to deprive Plaintiff of her rights, privileges or immunities received by Constitution of the United States of America, and provided them by the Constitution of the State of New York; were subjected to Great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, injured in his character and reputation, was

prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging the Plaintiff.

70. That by reason of the aforesaid violations, to wit the malicious prosecution, violation of civil rights, false arrest, false imprisonment caused by the Defendant who wrongfully deprived the Plaintiff and compelled her to abandon her rights and privileges as provided to her in the Constitution of the United States of America, and in the Constitution of the United States of America, and in the Constitution of the State of New York, and laws thereto, the Defendants, acting within the scope of their authority and without any probable cause, caused the Plaintiff great harm because of the aforesaid illegal conduct.
71. Plaintiff has been damaged in an amount that exceed the jurisdictional limits of the courts.

AS AND FOR THE FOURTH CAUSE OF ACTION
ON BEHALF OF JENNIFER BURRELL
FOR ATTORNEY FEES PURSUANT TO 42 USC SECTION 1981

72. The Plaintiff, **JENNIFER BURRELL**, hereby incorporates by reference each and every preceding paragraph 1-71 of this Summons and Complaint as though fully plead and re-alleged in their entirety below.
73. Defendants predominantly white police officers engaged in the wrongful acts of falsely arresting Plaintiff to deprive an African-American female of her civil rights based upon her race.
74. Upon information and belief, the police do not arrest white citizens who present proof of a valid alibi as they do minority citizens in the same situation.

75. By reason of the Defendants wrongful conduct, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of the Courts.

AS AND FOR THE FIFTH CAUSE OF ACTION
ON BEHALF OF JENNIFER BURRELL
FOR ATTORNEY FEES PURSUANT TO 42 USC SECTION 1988

76. Should Plaintiff be victorious upon her civil right claims, she intends to assert a claim for attorney fees on her federal claims pursuant to 42 USC section 1983, 1981, 1985 (3) et seq.
77. That by reason of the aforesaid violations, the Plaintiff requests the following relief:
- a. Compensatory damages in the sum, which exceeds the jurisdictional limits of all lower courts.
 - b. Punitive damages in the sum, which exceeds the jurisdictional limits of all lower courts.
 - c. An award of reasonable attorney's feed, costs and disbursements;
 - d. Plaintiff requests a trial by jury of all issues involved in this complaint;
 - e. Such other and further relief as this Court may deem just, meet and proper under the circumstances.

Dated: New York, NY 10007
May 7th, 2014



Ronald Paul Hart, Esq.
Ronald Paul Hart, P.C.
225 Broadway, Suite 2815
New York, NY 10007
Tel: (212) 766-1443

ATTORNEY'S AFFIRMATION

RONALD PAUL HART. P.C. are attorneys verifying the following to be true under the penalties of perjury:

1. I am an attorney at law with an office located at 225 Broadway, Ste. 2815, New York, New York 10007.
2. I submit this verification on behalf of my client, Jennifer Burrell because my law office is in a County different from where the client's residence is pursuant to the CPLR.
3. I further affirm that I have read **PLAINTIFF'S Summons and Complaint**, have discussed it with her in addition to reviewing the file, and conducted legal investigation.
4. I verify affirm that the facts stated herein are true after full investigation and consultations with our client.
5. All matters alleged upon information and belief, are premised upon consultation with my client and file review.

Dated: New York, New York
May 7, 2015

By, Ronald Paul Hart
RONALD PAUL HART PC
225 Broadway, Suite 2815
New York, NY, 10007
Tel. (212) 766-1443

SUPREME COURT OF THE CITY OF NEW YORK
COUNTY OF BRONX

INDEX NUMBER: /2014

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Plaintiff,

-against-

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PRECINCT**

Defendants.

SUMMONS AND COMPLAINT

RONALD P. HART, ESQ.
Attorney(s) for Plaintiff
225 Broadway, Suite 2815
New York, N.Y. 10007
Tel. (212) 766-1443

To	Attorney(s)	for	Defendant
Signature Rule 130-1.1-a)			

Service of a Copy of the Within Summons and Complaint is Hereby Admitted.

Dated: _____

Attorney(s) for DEFENDANTS

Counselor(s): Please Take Notice that a

NOTICE OF ENTRY that the within is a true copy of

NOTICE OF SETTLEMENT

that an order for _____ of which the within is a true copy will be presented for settlement to
the HON. _____ one of the justices of the within named Court at
on the _____ day of _____ 2015 at 9:30 A. M.

Dated:

To: